

25STCV27528 25STCV27528

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV27528 Hearing Date: August 18, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

18, 2026 TRIAL

DATE: July 10, 2028

CASE: Daniel Williams v. General Motors, LLC

CASE NO.: 25STCV27528

DEFENDANT

GENERAL MOTORS LLC'S MOTION FOR COMPLIANCE PURSUANT TO C.C.P. § 871.26; AND REQUEST
FOR SANCTIONS

MOVING PARTY: Defendant

General Motors, LLC

RESPONDING PARTY: Plaintiff Daniel

Williams

I. INTRODUCTION

This is a

Song-Beverly action. On June 3, 2026, defendant

General Motors, LLC ("GM") filed this motion to compel Plaintiff, Daniel

Williams, to comply with his initial deposition as required under Code of Civil

Procedure (CCP) section 871.26(c)(1). GM

also requests sanctions against Plaintiff's counsel in the amount of \$1,500 pursuant to CCP § 871.26(j)(2).

On August 5,
2026, Plaintiff filed an opposition.

On August
11, 2026, GM filed a reply.

II. LEGAL STANDARD

CCP section 871.26 allows for an expedited
discovery and resolution process in "lemon law" matters:

"(c)

Within 120 days after the filing of the answer or other responsive pleading,
all parties have the right to conduct initial depositions, each not to exceed
two hours, of the following deponents:

(1) The
plaintiff.

(2) The
defendant, and if the defendant is not a natural person, the person who is most
qualified to testify on the defendant's behalf. This deposition shall be
limited to the topics listed in subdivision (i).

(CCP, § 871.26(c).)

In the event a plaintiff fails to timely provide
these disclosures, CCP section 871.26 requires that the court sanction counsel
\$1,500.00 for each such failure:

(j) Unless the party failing to comply with this
section shows good cause, notwithstanding any other law and in addition to any
other sanctions imposed pursuant to this chapter, a court shall impose
sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500)

sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(2) A one-thousand-five-hundred-dollar (\$1,500)

sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(CCP, § 871.26(j)(1)-(2).)

III. DISCUSSION

The court will grant the motion. It is undisputed that Plaintiff did not appear for deposition within 120 days of the filing of GM's responsive pleading on January 9, 2026. Plaintiff therefore violated the requirement. For this reason, Plaintiff is ordered to appear for deposition.

The real issue is whether sanctions should be imposed against Plaintiff's counsel. Plaintiff's counsel argues sanctions would be unjust because counsel has been unable to contact Plaintiff since the filing of this action. Plaintiff's counsel also points out that GM did not meet and confer regarding deposition dates prior to serving Plaintiff's counsel with a deposition notice for March 10, 2026.

The court is not persuaded by Plaintiff's counsel's arguments. Plaintiff's counsel shows that the first attempt to contact Plaintiff about his deposition was made on May 5, 2026. (See Smith Decl., ¶ 7.) This effort to contact Plaintiff comes only two months after the date GM initially noticed Plaintiff's deposition, five months after GM filed its responsive pleading, seven months after Plaintiff personally served GM with the summons and complaint, and almost a year after Plaintiff initiated this action. This timeline suggests the loss of communication with Plaintiff is due, in part, to Plaintiff's counsel conduct. Further, although the better practice, there is no requirement that a party meet and confer prior

to noticing an opposing party's deposition. Moreover, the court notes that Plaintiff placed the burden on GM offering alternative deposition dates rather than offering deposition dates on his own volition. The point is significant given the initial disclosure and discovery deadlines imposed by CCP section 871.26. For this reason, the court finds sanctions against Plaintiff's counsel is warranted.

Plaintiff's counsel is ordered to pay sanctions of \$1,500.00.

IV. CONCLUSION

The motion is GRANTED.

Plaintiff is ordered to appear for deposition within 15 days of this order. Plaintiff's counsel is ordered to pay sanctions in the total amount of \$1,500.00, payable within 15 business days.

Moving Party to give notice.

Dated: August 18, 2026

Brock T. Hammond

Judge of the Superior Court